

Title: **Combined Sources Sought Notice/Notice of Intent to Sole Source** for Preventive Maintenance services for Bruker Dimension Pro AFM.

*****THIS IS A COMBINED SOURCES SOUGHT NOTICE AND NOTICE OF INTENT TO SOLE SOURCE*****

BACKGROUND

The National Institute of Standards and Technology (NIST) is seeking information from sources that may be capable of providing Preventive Maintenance services for Bruker Dimension Pro AFM that can meet the specifications listed below. If no alternate sources are identified, the Government intends to issue a Sole Source Award to Bruker Nano (UEI: **HF8BQ45QKKJ3**), located at 5255 E Williams Circle, STE 2080, Tuscon, AZ 85711, under the authority of FAR 12.102(a). The North American Industry Classification System (NAICS) code for this acquisition is 811210.

NIST-Boulder has a state-of-the-art research laboratory (the Katharine Blodgett Gebbie Building) to support the most sensitive research done at NIST. Included in this building is a high end imaging and characterization facility, called the Precision Imaging Facility (PIF). Among the many critical pieces of equipment in this laboratory is a Bruker Dimension Pro Atomic Force Microscope (AFM) system that is used to image surfaces at the atomic scale. If the tool is inoperable, NIST mission critical work is halted. In order to keep a high tool uptime, the PIF requires a service contract to maintain this tool and offer support if a tool becomes inoperable.

- i. **CLIN 0001 Bruker Dimension Pro AFM Service Contract:** For a period of a year, with a start date coordinated after award of contract, the contractor shall perform the following services on the PIF's Bruker Dimension Pro AFM, serial number 12798423:
 1. The contractor shall provide a year-long service contract on the tool. This service contract shall be Bruker's standard Complete Care Program service contract, as outlined in Attachment 1, BNS Worldwide Service and Support - 2022-10-18, that specifically includes but is not limited to:
 - a. Priority technical assistance (phone/e-mail) and priority on-line diagnostic support
 - b. No-charge advance replacement parts provided through the Bruker Nano Advance Replacement Program
 - c. Maintenance visit; a single no-charge on-site advanced scheduled maintenance visit including all travel and labor expenses. Once instrument confirmed calibrated and meeting specifications remaining work time may be used for user training and/or applications support.
 - d. Priority no-charge on-site diagnostic or repair support at discretion of Bruker Nano Technical Support
 - e. Single no-fault scanner repair within program period

- f. Two (2) no-charge seats in an available Bruker Nano training class held at our Bruker Nano facilities or regional offices. Class listings may be found at Bruker.com.
 - g. 25% training or service visit discount
 - h. 20% discount for 10-packs of Bruker-manufactured AFM probes. Over 90 probe models included covering Silicon, Nitride, FastScan, and certain specialty models. AFM probes discount supersedes consumables discount.
 - 2. At the end of each service visit or repair, the tool must operate according to OEM standards or better.
 - 3. The contractor shall provide a formal maintenance plan that outlines all maintenance to be performed on the system.
 - 4. Within one week of each service visit, the contractor shall provide a report detailing all of the services that were performed.
- ii. **OPTION: CLIN 0002 Refurbishing of Government's AFM Controller:**
 - 1. The contractor shall provide refurbish the Government's existing Bruker Dimension Pro AFM controller to OEM standards or better. After the refurbishment, the Government's Bruker Dimension Pro AFM controller shall operate to OEM standards or better in both contact and non-contact AFM topography imaging modes.
 - 2. This option will be exercised at the time of award of contract.
- iii. **OPTION: CLIN 1001 Bruker Dimension Pro AFM Option Year 1:**
 - 1. The contractor shall provide an additional year of the service described in CLIN 0001 for an additional year that starts at the end of CLIN 0001.
 - 2. This option will be able to be excersied at any time during the period of CLIN 0001.

HOW TO RESPOND TO THIS NOTICE

In responding to this notice, please DO NOT PROVIDE PROPRIETARY INFORMATION. Please include only the following information, readable in either Microsoft Word 365, Microsoft Excel 365, or .pdf format, in the response: Submit the response by email to the Primary Point of Contact and, if specified, to the Secondary Point of Contact listed in this notice as soon as possible, and preferably before the closing date and time of this notice. Please note that to be considered for award under any official solicitation, the entity must be registered and "active" in SAM at the time of solicitation response.

- Provide the complete name of your company, address, name of contact for follow-up questions, their email, their phone number and, if your company has an active registration in <https://sam.gov>, your company's Unique Entity ID (UEI).

- Identify the equipment that your company sells that can meet the objectives addressed in the BACKGROUND section of this notice. For each product recommended to meet the Government's requirement, provide the following:
 - Manufacturer name
 - Model number
 - Technical specifications
 - If your company is not the manufacturer, provide information on your company's status as an authorized reseller of the product(s)
- Describe performance capabilities of the product(s) your company recommends to meet the Government's requirements. Additionally, if there are other features or functions that you believe would assist NIST in meeting its objectives described above, please discuss in your response.
 - Discuss whether the equipment that your company sells and which you describe in your response to this notice may be customized to specifications and indicate any limits to customization.
- Identify any aspects of the NIST market research notice, including instructions, and draft minimum specifications in the BACKGROUND section you cannot meet and state why. Please offer suggestions for how the market research notice and draft minimum specifications could be made more competitive.
- State whether the proposed equipment is manufactured in the United States and, if not, state the name of the country where the equipment is manufactured.
- Identify any plans/possibilities for changes in manufacturing location of the aforementioned equipment and provide relevant details, including timeline.
- For the NAICS code listed in this notice:
 - Indicate whether your company is (a) a small business or (b) other than small business. See the [Table of Small Business Size Standards](#) and the associated .pdf download file for small business size standards and additional information.
 - If you believe the NAICS code listed in this notice is not the best NAICS code for the type of product addressed in this notice, identify an alternative NAICS code that you believe would be more appropriate for the planned procurement.
- Describe services that are available with the purchase of the aforementioned equipment from your company such as installation, training, and equipment maintenance.
- Describe standard terms and conditions of sale offered by your company for the recommended equipment such as: delivery time after your company accepts the order; FOB shipping terms; manufacturer warranty (including details regarding nature and duration); if available, description(s) of available extended warranty; equipment setup and test; operator and service instruction manual(s); cleanup after installation; and if applicable, other offered services. Provide a copy of manufacturer standard terms and conditions that typically relate to the sale of the specified equipment, if available.

- State whether your company offers facility renovation services related to installation of the recommended equipment at its delivery destination, if required per the NIST-identified minimum specifications, and provide description of said services. Indicate if your company performs the facility renovation services or typically subcontracts the work to another company. Indicate if your company would be interested in inspecting the intended installation site during the market research phase.
- State published price, discount, or rebate arrangements for recommended equipment and/or provide link to access company's published prices for equipment and services.
- If the recommended equipment and related services are available for purchase on any existing Federal Supply Schedule contract(s) or other contracts against which NIST may be able to place orders, identify the contract number(s) and other relevant information.
- Identify any customers in the public or private sectors to which you provided the recommended or similar equipment. Include customer(s) information: company name, phone number, point of contact, email address.
- Provide any other information that you believe would be valuable for NIST to know as part of its market research for this requirement.
- State if you require NIST to provide additional information to improve your understanding of the government's requirement and/or would like to meet with NIST representatives to discuss the requirement and the capabilities of the identified equipment.

QUESTIONS REGARDING THIS NOTICE

Questions regarding this notice may be submitted via email to the Primary Point of Contact and the Secondary Point of Contact listed in this notice. Questions should be submitted so that they are received 5 days prior to the response date. If the Contracting Officer determines that providing a written amendment to this notice to document question(s) received would benefit other potential respondents, the questions would be anonymized, and a written response to such question(s) would be provided via an amendment to this notice.

IMPORTANT NOTES

This notice is for market research purposes and should not be construed as a commitment by NIST to issue a solicitation or ultimately award a contract. There is no solicitation available at this time.

This notice does not obligate the Government to award a contract or otherwise pay for the information provided in response.

NIST reserves the right to use information provided by respondents for any purpose deemed necessary and legally appropriate.

Any organization responding to this notice should ensure that its response is complete and sufficiently detailed to allow the Government to determine the organization's capability.

Respondents are advised that the Government is under no obligation to acknowledge receipt of the information received or provide feedback to respondents with respect to any information submitted.

After a review of the responses received, a synopsis and solicitation may be published on GSA's eBuy or SAM.gov. However, responses to this notice will not be considered an adequate response to any such solicitation(s).

The responses shall not exceed [4] pages including all attachments, charts, etc.

Thank you for taking the time to submit a response to this request!